

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUPP046820: ISIDORO CISNEROS BY AND THROUGH HIS SUCCESSOR IN
INTEREST LINDA CISNEROS, et al. vs SANTA PAULA POST ACUTE LLC, et al.**

07/14/2026 in Department 42

**Motion to Compel DEFENDANT SANTA PAULA POST ACUTE, LLC RESPONSES TO
FORM INTERROGATORIES, SET ONE**

Motions: Plaintiff's four Motions to Compel initial discovery responses (*unopposed*)

Tentative Ruling:

The Court intends to GRANT Plaintiff's Motions to Compel Responses to Form Interrogatories, Special Interrogatories, and Requests for Production of Documents, and to award of monetary sanctions in the amount of \$500 per motion. Defendant Santa Paula Acute LLC is ordered to provide code-compliant responses, without objections, within 15 days of this order and to pay Plaintiff monetary sanctions totaling \$1,500 within that same time period.

The Court also intends to GRANT Plaintiff's Motion to Deem Facts Admitted. The matters stated in Plaintiff's Request for Admission are deemed true and genuine, unless at the hearing it is shown that a response that meets the requirements of Code of Civil Procedure, section 2033.280, subdivision (c) has been served by Defendant Santa Paula Acute LLC on Plaintiff.

Notice to be provided by Plaintiff.

Grounds:

Discovery consisting of form interrogatories, special interrogatories, requests for production, and requests for admission were served on February 5, 2026. Santa Paula Acute, LLC has failed to respond as of April 14, 2026. Defendant should be compelled to provide responses, and the RFAs deemed admitted. Sanctions of \$960 per motion are requested (except the Motion to Deem the RFAs Admitted), totaling \$2,880. The requested sanctions are supported by a declaration of counsel, and consist of the meet and confer letter sent on April 9, 2026, and the two hours spent at \$450/hour plus filing fee.

Analysis:

Motions to Compel Initial Discovery Responses

A party to whom interrogatories, demands for production, or requests for admission have been propounded shall respond in writing under oath separately to each interrogatory or demand by providing an answer or a statement of compliance, or by providing an objection. (Code Civ. Proc., §§ 2030.210, 2031.210, & 2033.210.) If an objection is made to an interrogatory, demand for production or part thereof, or an objection is based on a claim of privilege, the specific ground or particular privilege invoked shall be clearly stated. (Code Civ. Proc., §§ 2030.240, 2031.240, & 2033.230.) Responses should be served within 30 days of service. (Code Civ. Proc., §§ 2030.260, 2031.260, & 2033.250.) A motion to compel responses may be brought where a responding party fails to timely respond to written discovery, and the party who failed to serve timely responses waives any objections. (Code Civ. Proc., §§ 2030.290, 2031.300, & 2033.280.) There is no requirement to meet and confer, and no time limitation, regarding initial responses.

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Regarding RFAs, if a responding party fails to serve timely initial responses, then (1) that party waives all objections and (2) the party seeking discovery may move to deem admitted the truth of matters in the requests for admission, and the court shall order the matters admitted unless the responding party serves responses before the hearing. (CCP, § 2033.280, subds. (a)-(c).)

A motion to compel may be heard even if late responses are served subsequent to the motion being filed. Unless the propounding party takes the matter off calendar, the court may determine whether the responses are legally sufficient and award sanctions for the failure to respond on time. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 410-411.)

Unsuccessfully making or opposing a motion to compel responses, interrogatories, RFPs, or RFAs can subject a party to sanctions unless that party acted with substantial justification or that other circumstances make the imposition of the sanctions unjust. (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c), & 2033.280, subd. (c).) The California Rules of Court, rule 3.1348(a) provides: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” A trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should “attempt to tailor the sanction to the harm caused by the withheld discovery.” (*Do It Urself Moving & Storage, Inc. v. Brown, Leifer, Slatkin & Berns* (1992) 7 Cal.App.4th 27, 36.)

Application

Plaintiff has established that he served all discovery requests at issue in the Motions on February 5, 2026, and that Defendant Santa Paula Acute LLC has not provided any responses despite the reminder letter sent on April 9, 2026. Defendant completely failed to respond. Therefore, pursuant to Code of Civil Procedure sections 2030.290, subdivision (a) and 2031.300, subdivision (a), Defendant has waived all objections to the discovery requests.

Accordingly, the Court may grant Plaintiff’s request to compel verified code-compliant responses to the interrogatories (form and special) and request for production, without objections, within 15 days. (Code Civ. Proc., §2030.290, subd. (b), §2031.300, subd. (b).)

As for the RFAs, because there is nothing before the Court showing that Defendant has provided any response to the RFAs at or before the hearing, the Motion should be granted. The Court is required to order the matters admitted.

The Court finds that with respect to the sanctions requests, they are unreasonable and not justified regarding the amounts claimed for each of the three interrogatories and RFP Motions.

While the hourly rate is appropriate (\$450/hour), the hours claimed are a somewhat inflated given the nature of these motions. So the Court will order \$500 per motion, for a total of \$1,500. These are all unopposed motions to compel initial responses and appear to contain standard language. Defendant is ordered to pay sanctions totaling \$1,500 within 15 days of this order.

